

Vivek Prakash And Another vs State Of U.P. Thru. Prin. Secy. Home. Lko ... on 16 August, 2022

Author: Dinesh Kumar Singh

Bench: Dinesh Kumar Singh

HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

?Court No. - 10

Case :- APPLICATION U/S 482 No. - 227 of 2020

Applicant :- Vivek Prakash And Another

Opposite Party :- State Of U.P. Thru. Prin. Secy. Home. Lko And Another

Counsel for Applicant :- Kapil Misra,Rakesh Kumar Upadhyaya,Sushil Kumar Singh

Counsel for Opposite Party :- Govt. Advocate,Pallavi Vatsala,Ram Raj Ojha

Hon'ble Dinesh Kumar Singh,J.

1. Heard learned counsel for the parties and perused the record.
2. This petition has been filed for quashing charge-sheet no.01 of 2019, dated 9.9.2019 and the entire proceedings of Criminal Case No.237 of 2020, arising out of Case Crime No.0085 of 2019, under Sections 498-A, 504, 506, 406 IPC and Section Dowry prohibition Act, Police Station Vibhuti Khand, District Lucknow, pending in the court of Chief Judicial magistrat5e, Lucknow.
3. The parties have arrived at a compromise. In pursuance to the order dated 5.8.2022, the other belongings of opposite party no.2 have also been handed over on 13.8.2022 and the parties have signed the proceedings drawn between them on 13.8.2022, which has been tendered in the Court and the same is also taken on record.

4. The following four cases are pending before the different Courts:-

1. Case Crime No.792 of 2019, under Section 506 IPC, Police Station Vibhuti Khand, District Lucknow filed by petitioner no.1 and the same is pending in the court of Chief Judicial Magistrate, Lucknow.
2. Case Crime No.0085 of 2019, under Section 498-A, 504, 506, 406 IPC and Section Dowry Prohibition Act, Police Station Vibhuti Khand, Lucknow lodged by petitioner no.1 (present proceedings)
3. Divorce Case No.137 of 2021 filed by the petitioner, which is pending in the Family Court, Lucknow.
4. Case Crime No.185 of 2019, under Sections 147, 323, 504, 506, 452, 394 IPC, Police Station Dhumanganj, District Prayagraj, lodged by the mother of petitioner no.2 in Police station Allahabad.?
5. Since the parties have arrived at compromise, the proceedings in respect of cases mentioned at serial nos.1, 2 and 4 are liable to be quashed.
6. In respect of the Divorce Case No.137 of 2021 filed under Section 13 of the Hindu Marriage Act by opposite party no.2, the parties have agreed that the same shall be converted as proceedings under Section 13-B Hindu Marriage Act.
7. In view thereof, the parties shall appear before the Family Court concerned on 24.8.2022 and file necessary pleadings to convert the petition filed under Section 13 of the Hindu Marriage Act filed by opposite party no.2 as Section 13-B of Hindu Marriage Act.
8. Considering the ratio laid down by the Supreme Court in the cases of B.S. Joshi and others versus State of Haryana and another : (2003) 4 SCC 675, Nikhil Merchant versus C.B.I. and another : (2008) 9 SCC 677, Manoj Sharma versus State and others : (2008) 16 SCC 1, Gian Singh versus State of Punjab: (2010) 15 SCC 118 and Narinder Singh and others versus State of Punjab and another: (2014) 6 SCC 466, it would be appropriate in the facts and circumstances of the case to quash the criminal proceedings as continuance of the proceedings in pursuance of the criminal proceedings would be an exercise in futility.
9. In view thereof, the petition is allowed and the entire proceedings of cases at serial no.1, 2 and 4 mentioned in paragraph four of this order are hereby quashed.

Order Date :- 16.8.2022 Rao/-